

Policy Title: Christmas Tree Sale Lots

Policy Number: Part 7, Planning and Land Use; Chapter 3, Permits; Section 2

Type of Policy: Regulatory

Adopting Resolution: CC06-482

References: Zoning Resolution; Jefferson County Building Code; Resolutions CC84-1079, CC05-391

Effective Date: November 1, 2006

Adoption Date: October 31, 2006

Administrative Revision Date: Not applicable

Policy Custodian: Planning and Zoning Division

Purpose: To regulate Christmas tree sale lots.

A. Permits

1. Electrical Permit: An electrical permit must be obtained from the Division of Building Safety if any wiring is to be installed.
 - a. All wiring must conform to the National Electric Code and the Jefferson County Building Code and be installed by a licensed electrician.
 - b. No permit will be issued without a State Masters License Number.
2. Miscellaneous Permit: A Miscellaneous Zoning Permit must be obtained from the Planning and Zoning Division and shall include the following:
 - a. A nonrefundable processing fee;
 - b. A site plan showing the location of temporary buildings or structures in relationship to the subject property. The site plan shall be to scale (1" = 20', 1"=30', 1"=40') and shall show all property lines and;
 - c. A parking plan showing parking spaces to be temporarily removed and a calculation showing that sufficient parking will be met for both existing and temporary uses.

B. Standards:

1. Christmas Tree Sales Lots shall be permitted in the following zone districts: Restricted Commercial (R-C), Commercial One (C-1), Commercial Two (C-2),

Industrial One (I-1), Industrial Two (I-2), Industrial Three (I-3), Industrial Four (I-4), in the following subdistricts of the Corridor District (CD); Office and Light Industrial (CD-O/LI), Small-Scale Retail (CD-RS), Medium-Scale Retail (CD-RM), Mixed Use (CD-MU), and within Planned Development (P-D) zone districts when the permitted uses are similar to the permitted uses contained in the above listed zone districts.

2. A 50 foot setback from any road or building is required.
3. Sanitary facilities must be provided.
4. All temporary buildings or trailers moved onto the sales lot or erected at the sales lot must be removed and the site must be fully cleared of all debris, trees and other materials by January 15.
5. No overnight sleeping or residential use shall be permitted.